

26SMCV00650 26SMCV00650

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-07-09

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Case Number: 26SMCV00650 Hearing Date: July 9, 2026 Dept: N

TENTATIVE RULING

Defendant Tesla Energy Operations, Inc.'s Motion to Compel Arbitration and Stay Proceedings is DENIED without prejudice.

Defendant Tesla Energy Operations, Inc. to give notice.

REASONING

Defendant Tesla Energy Operations, Inc. ("Defendant") moves to compel Plaintiff Loraine Sinskey ("Plaintiff") to submit to arbitration pursuant to a written Power Purchase Agreement between Defendant's predecessor, SolarCity Corporation, and Plaintiff's husband, Robert M. Sinskey, wherein he agreed to arbitrate any disputes arising out of or relating to the agreement. Plaintiff has filed a response consenting that this action be submitted to arbitration, but she asks that all disputes, not just those alleged in the complaint, be included in the arbitration.

In the complaint, Plaintiff brings claims that arise out of a Power Purchase Agreement between her husband, Robert M. Sinskey, and Defendant's predecessor, SolarCity Corporation, and she provides a copy of the subject agreement with the complaint. (Compl. ¶ 5, Ex. A.) Defendant relies on this agreement as the basis of its motion, but Defendant has not provided an authenticated version of this agreement, simply introducing the agreement through defense counsel's declaration. The Court lacks a basis to conclude that defense counsel has the authority to authenticate this agreement in any way, such that the Court cannot conclude that Defendant has met its burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. Further, even assuming the agreement is authentic, Defendant fails to state a basis for requiring Plaintiff to submit her claims to arbitration despite being a nonsignatory to the agreement. Defendant states only that Plaintiff's husband entered into an agreement requiring heirs and estate to make payments, but Defendant does not explain how this would warrant sending Plaintiff to arbitration under the arbitration provision, and it is not the Court's responsibility to determine any such basis. For these reasons, Defendant Tesla Energy Operations, Inc.'s Motion to Compel Arbitration and Stay Proceedings is DENIED without prejudice. Defendant may refile the motion with an authenticated version of the agreement and argument as to the proper basis for arbitration.